

Andhra Pradesh State Human Rights Commission (Officers and other staff Service) Rules, 2008

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Andhra Pradesh State Human Rights Commission (Officers and other staff Service) Rules, 2008

Rule

ANDHRA-PRADESH-STATE-HUMAN-RIGHTS-COMMISSION-OFFICERS-AND-OTHER-STAFF-SERVICE-RULES-2008 of 2008

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Andhra Pradesh State Human Rights Commission (Officers and other staff Service) Rules, 2008

Published vide Notification No. G.O.Ms.No. 52, General Administration (HRC), dated 30.1.2008

Last Updated 29th August, 2019

G.O.Ms.No. 52. - In exercise of the powers conferred by Section 21 read with Sections 27 and 41 of the Protection of Human Rights Act, 1993 (Act No. 10 of 1994), the Government of Andhra Pradesh hereby makes the following rules:

1.

Short title and commencement.

(1)

These Rules may be called the Andhra Pradesh State Human Rights Commission (Officers and other staff Service) Rules, 2008.

(2)

It shall come into force with effect from the date of publication in the Andhra Pradesh Gazette.

2.

Definitions.

(1)

In these Rules, unless the context otherwise requires,

(a)

"Act" means the Protection of Human Rights Act, 1993 (Central Act No. 10 of 1994);

(b)

"Commission" means the Andhra Pradesh State Human Rights Commission constituted under Section 21 of the Act;

(c)

"Chairperson" means the 'the Chairperson of the Commission' appointed under Section 22 of the Act.

(2)

The words and expressions used but not defined in these rules, shall have the same meaning as respectively assigned to them in the Act.

3.

Officers and other Employees of the Commission.

- The number of such officers and employees is as mentioned below:

Sl.No.

Designation

No. of posts

Mode of recruitment

1.

Secretary

1

By Deputation from the Government or any other services, equal to the rank of Secretary to Government of Andhra Pradesh.

2.

Deputy Register-cum-Private Secretary to Hon
hie Chairperson

1

By deputation from High Court Service/Judicial Ministerial Service/ appointment by transfer/ by promotion from the post of Court Masters.

3.

Administrative Officer

1

By deputation from High Court Service from the post of Assistant Registrar/Judicial Service/by appointment by transfer/ promotion from the post of Court Officer/Court Master/Section Officers

4.

Public Relations Officer

1.

By deputation from High Court Service from the post of Assistant Registrar/Judicial Ministerial Service/by appointment by transfer/by promotion from the post of Court

Officer/Court Master/Section Officers.

5.

Section Officers

2.

By deputation from any service/ appointment by transfer/by promotion from the post of ASO

6.

Court Officers

1

By deputation from High Court Service/Judicial Ministerial service/appointment by transfer/ by promotion from the post of Senior Assistant.

7.

Court Masters

3

By deputation from any service/ appointment by transfer/by promotion from the post of U.D. Stenographer.

8.

U.D. Stenographers

2

By deputation from any service/ appointment by transfer/Direct Recruitment.

9.

Computer Operators

2

By deputation from any service/ appointment by transfer/Direct Recruitment.

10.

Senior Assistants

2

By deputation from any service/ by direct recruitment/ appointment by transfer/by promotion from the post of Junior Assistant.

11.

Junior Assistants

6

By deputation from any service/ by direct recruitment/ appointment by transfer/by promotion from the post of Record Assistants or Attenders.

12.

Record Assistants/Xerox-cum-Fax Operators

1

By deputation from any service/ appointment by transfer/by promotion from the post of Attender/Direct Recruitment.

13.

Drivers

6

By deputation from any service/ by direct recruitment/ appointment by transfer.

14.

Attenders

15

By deputation from any service/ by direct recruitment/appoint by transfer.

15.

Sweepers

3

By direct recruitment

16.

Watchmen

2

By direct recruitment

(Direct recruitment/appointment by transfer should be done only when suitable candidates for deputation are not available, except sl.nos. 15 and 16 above)

4.

Qualifications.

- No person shall be eligible for appointment to the service by direct recruitment unless he satisfies the following conditions:

(a)

that he is of sound health, active habits and free from bodily defects or infirmity making him unfit for the service.

(b)

that his character and antecedents are such as would not disqualify for the service.

(c)

that he satisfies the age criteria, both minimum and maximum, as provided from time to time in the Andhra Pradesh State and Subordinate Service Rules.

(d)

that he possesses the prescribed qualifications.

(e)

The Chairperson may, at his discretion, relax the age rule and also qualifications if he considers it necessary in individual cases.

5.

Probation.

- (i) every person, appointed by direct recruitment to any post, shall from the date on which he commences his probation, be on probation for a total period of two years on date within a continuous period of three years.

(ii)

every person appointed to any post, either by promotion or by transfer (not by transfer in tenure), shall, from the date on which he commences his probation, be on probation for a period of one year on date within a continuous period of two years.

(iii)

at any time before the expiry of the period of probation, specified above, the appointing authority may, in its discretion, by order, terminate the probation of a probationer and discharge him.

(iv)

if, at the end of the prescribed or extended period of probation, as the case may be, the appointing authority considers the probationer to be suitable for full membership, he shall issue an order declaring the probationer to have satisfactorily completed his period of probation and, on the issue of such order, the probationer shall be deemed to have satisfactorily completed his probation on the date of expiry of the prescribed or extended period of probation, as the case may be.

(v)

the seniority of the person to the service shall be taken by his first entry into the service.

(vi)

The criteria for promotion shall be merit-cum-seniority.

(vii)

The deputationist shall also be eligible for promotion to higher post, if the Commission so decides, and such deputationist, who is promoted to the higher post, shall be eligible to draw the pay and all other allowances, which the said higher posts carries. Provided, if the commission is of the view that it is not possible to appoint in cadre staff to any post, then even the retired persons can be appointed.

6.

Appointing authority and Disciplinary Authority.

- The appointing authority and disciplinary authority shall be the Chairperson of the Commission.

7.

Bqation of Posts and Scale of Pay and Allowances.

- For the purpose of pay and allowances, leave en-cashment of leave, Leave Travel Concession and other benefits, the holders of posts, mentioned above, shall draw the same pay, allowances and other perquisites as those admissible to the holders of corresponding posts in the High Court Service or A.P.Higher Judicial Service or A.P. Judicial Ministerial Service or the A.P. Secretariat Service, as the case may be.

8.

Applicability of the Rules.

- In respect of matters, which are not expressly covered by these rules, the Chiarperson of the Commission may, by order, apply the provisions of Andhra Pradesh State Subordinate Service Rules, the Fundamental Rules, the subsidiary Rules, there under, Civil Service Regulations, the Andhra Pradesh Civil Services (Conduct) Rules, 1964 and other Rules, applicable to the employees of the Government of Andhra Pradesh, to the members of the service of this Commission to the extent and subject to such modifications as may be considered necessary.

9.

Relaxation of Rules.

- Nothing in these rules shall be construed to limit or abridge the powers of the Chairperson of the Commission to deal with the cases of any member of the service of the Commission or any person to be appointed to the service of the Commission in such manner as may appear to him to be just land equitable;

Provided that where any such rule is applicable to the case of any member of the service or any person, his case shall not be dealt with in any manner than that provided by the relevant rules.

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